

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

CASE OF MILKOVA AND OTHERS v. RUSSIA

(Applications nos. 3316/19 and 46 others –
see appended list)

JUDGMENT

STRASBOURG

8 June 2023

This judgment is final but it may be subject to editorial revision.



In the case of Milkova and Others v. Russia,

The European Court of Human Rights (Fifth Section), sitting as a Committee composed of:

María Elósegui*, President*,
Mattias Guyomar,
Kateřina Šimáčková*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 17 May 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of country-wide protests against retirement age hike organised by Aleksey Navalnyy on 9 September 2018. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts); *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014; and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018; *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018; and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; and *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence

of a prosecuting party in the proceedings under the Code of Administrative Offences ("the CAO").

V. REMAINING COMPLAINTS

14. Some applicants also raised other further additional complaints under Articles 5 and 6 of the Convention concerning other aspects of their deprivation of liberty and fairness of the administrative-offence proceedings. In view of the findings in paragraphs 11 and 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

15. The Court has further examined the rest of the complaints raised by the applicants and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints either do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention or do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention. It follows that this part of the applications must be rejected in accordance with Article 35 § 4 of the Convention.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

16. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, *finds* that there is no need to examine separately the remaining complaints under Articles 5 and 6 of the Convention, and *declares* the remainder of the applications inadmissible;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 8 June 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	María Elósegui President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Location of the public event	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	3316/19 29/12/2018	**Olga Alekseyevna MILKOVA** 1965	Bushmakov Aleksey Vladimirovich Yekaterinburg	Yekaterinburg	Article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 07/11/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
2.	5827/19 29/12/2018	**Igor Vasilyevich MILKOV** 1965	Bushmakov Aleksey Vladimirovich Yekaterinburg	Yekaterinburg	Article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 09/11/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
3.	6005/19 25/12/2018	**Svetlana Ivanovna YEFIMOVICH** 1940	Lepekhin Andrey Gennadyevich Chelyabinsk	Chelyabinsk	Article 20.2 § 5 of CAO	fine of RUB 5,000	Chelyabinsk Regional Court 10/10/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
4.	6009/19 25/12/2018	**Yuriy Sergeyevich SITNIKOV** 1995	Lepekhin Andrey Gennadyevich Chelyabinsk	Chelyabinsk	Article 20.2 § 5 of CAO	fine of RUB 10,000	Chelyabinsk Regional Court 25/10/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
5.	6014/19 25/12/2018	**Viktor Viktorovich PARSHUKOV** 1984	Lepekhin Andrey Gennadyevich Chelyabinsk	Chelyabinsk	Article 20.2 § 5 of CAO	fine of RUB 5,000	Chelyabinsk Regional Court 25/10/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
6.	6017/19 25/12/2018	**Yevgeniy Igorevich ZUBOV** 1997	Lepekhin Andrey Gennadyevich Chelyabinsk	Chelyabinsk	Article 20.2 § 5 of CAO	fine of RUB 15,000	Chelyabinsk Regional Court 10/10/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500

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7.	6030/19 25/12/2018	**Anastasiya Sergeyevna GRIGORYEVA** 1993	Lepekhin Andrey Gennadyevich Chelyabinsk	Chelyabinsk	Article 20.2 § 5 of CAO	fine of RUB 5,000	Chelyabinsk Regional Court 25/10/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
8.	6041/19 26/12/2018	**Ruslan Vladimirovich KHAFIZOV** 1988	Lepekhin Andrey Gennadyevich Chelyabinsk	Chelyabinsk	Article 20.2 § 5 of CAO	fine of RUB 10,000	Chelyabinsk Regional Court 01/11/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
9.	6044/19 26/12/2018	**Aleksey Nikolayevich BRYANTSEV** 1979	Lepekhin Andrey Gennadyevich Chelyabinsk	Chelyabinsk	Article 20.2 § 5 of CAO	fine of RUB 10,000	Chelyabinsk Regional Court 25/10/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
10.	6687/19 21/01/2019	**Vladimir Ivanovich CHERNYSHEV** 1966	Zhdanov Ivan Yuryevich Vilnius	Belgorod	Article 20.2 § 8 of CAO	detention for 20 days	Belgorod Regional Court 19/09/2018	Art. 5 (1) – unlawful deprivation of liberty – arrest and escorting to the police station on 09/09/2018 for the sole purpose of compiling an administrative offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
11.	7465/19 23/01/2019	**Yevgeniy Levonovich BAGDASAROV** 1988	Sabinin Andrey Vasilyevich Stavropol	Stavropol	Article 20.2 § 5 of CAO	fine of RUB 20,000	Stavropol Regional Court 24/10/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
12.	7469/19 22/01/2019	**Yevgeniy Vladislavovich LAZUTIN** 1993	Sabinin Andrey Vasilyevich Stavropol	Stavropol	Article 20.2 § 5 of CAO	fine of RUB 10,000	Stavropol Regional Court 24/10/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500

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13.	7473/19 22/01/2019	**Maksim Vladimirovich VILENSKIY** 1987	Sabinin Andrey Vasilyevich Stavropol	Stavropol	Article 20.2 § 5 of CAO	fine of RUB 10,000	Stavropol Regional Court 24/10/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
14.	7476/19 22/01/2019	**Maksim Yevgenyevich PESHKOV** 1985	Sabinin Andrey Vasilyevich Stavropol	Stavropol	Article 20.2 § 5 of CAO	fine of RUB 10,000	Stavropol Regional Court 24/10/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
15.	7479/19 22/01/2019	**Aleksey Nikolayevich VASILENKO** 1959	Sabinin Andrey Vasilyevich Stavropol	Stavropol	Article 20.2 § 5 of CAO	fine of RUB 10,000	Stavropol Regional Court 24/10/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
16.	7482/19 22/01/2019	**Lyudmila Anatolyevna BORISENKO** 1965	Sabinin Andrey Vasilyevich Stavropol	Stavropol	Article 20.2 § 5 of CAO	fine of RUB 10,000	Stavropol Regional Court 24/10/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
17.	7484/19 22/01/2019	**Sergey Nikolayevich BORISENKO** 1964	Sabinin Andrey Vasilyevich Stavropol	Stavropol	Article 20.2 § 5 of CAO	fine of RUB 10,000	Stavropol Regional Court 24/10/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
18.	7488/19 22/01/2019	**Olga Aleksandrovna GERASYUK** 1993	Sabinin Andrey Vasilyevich Stavropol	Stavropol	Article 20.2 § 5 of CAO	fine of RUB 10,000	Stavropol Regional Court 24/10/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
19.	7489/19 22/01/2019	**Sergey Aleksandrovich MAKSIMENKO** 1984	Sabinin Andrey Vasilyevich Stavropol	Stavropol	Article 20.2 § 5 of CAO	fine of RUB 10,000	Stavropol Regional Court 24/10/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500

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20.	7490/19 22/01/2019	**Yevgeniy Aleksandrovich ROMANOV** 1996	Sabinin Andrey Vasilyevich Stavropol	Stavropol	Article 20.2 § 5 of CAO	fine of RUB 10,000	Stavropol Regional Court 24/10/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
21.	7492/19 22/01/2019	**Alla Pavlovna MOROZOVA** 1965	Sabinin Andrey Vasilyevich Stavropol	Stavropol	Article 20.2 § 5 of CAO	fine of RUB 10,000	Stavropol Regional Court 24/10/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
22.	13467/19 12/02/2019	**Aleksandra Dmitriyevna LUKYANENKO** 1997	Peredruk Aleksandr Dmitriyevich St Petersburg	St Petersburg	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	St Petersburg City Court 04/10/2018	Art. 5 (1) – unlawful deprivation of liberty – detention at the police station in excess of three hours after the offence report was compiled (arrested at 5.15 p.m. on 09/09/2018, brought to the police station at 12.40 a.m. on 10/09/2018, released at 8.35 a.m. on 11/09/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
23.	13635/19 13/02/2019	**Polina Yuryevna MIKHAYLOVA** 1995	Peredruk Aleksandr Dmitriyevich St Petersburg	St Petersburg	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	St Petersburg City Court 08/11/2018	Art. 5 (1) – unlawful deprivation of liberty – detention at the police station in excess of three hours after the offence report was compiled (arrested at 5.15 p.m. and brought to the police station at 5.25 p.m. on 09/09/2018, released at 2.45 p.m. on 11/09/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
24.	13814/19 01/03/2019	**Tatyana Nikolayevna ZAYTSEVA** 1986	Sholokhov Igor Nikolayevich Kazan	Omsk	Article 20.2 § 2 of CAO	fine of RUB 25,000	Omsk Regional Court 30/10/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500

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25.	15103/19 12/02/2019	**Aleksandr Yuryevich SERGEYEV** 1999	Peredruk Aleksandr Dmitriyevich St Petersburg	St Petersburg	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	St Petersburg City Court 08/11/2018	Art. 5 (1) – unlawful deprivation of liberty – detention at the police station in excess of three hours after the offence report was compiled (arrested at 4 p.m. on 09/09/2018, brought to the police station at 5.25 a.m. on 10/09/2018, released at 2.45 p.m. on 11/09/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
26.	17456/19 14/03/2019	**Mariya Aleksandrovna LAKHINA** 1996	Peredruk Aleksandr Dmitriyevich St Petersburg	St Petersburg	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	St Petersburg City Court 25/10/2018	Art. 5 (1) – unlawful deprivation of liberty – detention at the police station in excess of three hours after the offence report was compiled (arrested at 4.30 p.m. on 09/09/2018, brought to the police station at 12.40 a.m. on 10/09/2018, released at 8.30 a.m. on 11/09/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
27.	18775/19 19/03/2019	**Andrey Aleksandrovich MANICHENKO** 1956	Lepekhin Andrey Gennadyevich Chelyabinsk	Chelyabinsk	Article 20.2 § 5 of CAO	fine of RUB 75,000	Chelyabinsk Regional Court 18/10/2018 (amended by the decision of the Deputy President of the Chelyabinsk Regional Court on 26/02/2019)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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28.	20463/19 26/03/2019	**Denis Alekseyevich KRAVCHENKO** 1997	Sholokhov Igor Nikolayevich Kazan	Ulan-Ude	Article 20.2 § 1 of CAO	fine of RUB 15,000	Supreme Court of the Buryatia Republic 22/10/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
29.	22087/19 12/04/2019	**Andrey Vladimirovich NEKURYASHCHIKH** 1966	Sholokhov Igor Nikolayevich Kazan	Omsk	Article 20.2 § 5 of CAO	fine of RUB 10,000	Omsk Regional Court 11/12/2018	Art. 5 (1) – unlawful deprivation of liberty – detention at the police station in excess of three hours after the offence report was compiled (arrested at 3.30 p.m. and brought to the police station at 4.30 p.m. on 09/09/2018, released at 2 p.m. on 10/09/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
30.	22689/19 12/04/2019	**Alla Vladimirovna KUZNETSOVA** 1967	Sholokhov Igor Nikolayevich Kazan	Ulan-Ude	Article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of Buryatia Republic 12/11/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
31.	24633/19 09/04/2019	**Mikhail Filippovich NIKANOROV** 1997	Mikhaylova Varvara Dmitriyevna St Petersburg	St Petersburg	Article 20.2 § 6.1 of CAO	detention for 7 days	St Petersburg City Court 11/10/2018	Art. 5 (1) – unlawful deprivation of liberty – detention at the police station in excess of three hours after the offence report was compiled (arrested at 6.15 p.m. and brought to the police station at 7.36 p.m. on 09/09/2018, released at 10.39 a.m. on 10/09/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000

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32.	24652/19 09/04/2019	**Denis Sergeyevich GUZHAVIN** 1985	Mikhaylova Varvara Dmitriyevna St Petersburg	St Petersburg	Article 20.2 § 6.1 of CAO	detention for 5 days	St Petersburg City Court 11/10/2018	Art. 5 (1) – unlawful deprivation of liberty – detention at the police station in excess of three hours after the offence report was compiled (arrested at 6.15 p.m. and brought to the police station at 7.36 p.m. on 09/09/2018, released at 10.42 a.m. on 10/09/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
33.	28932/19 13/05/2019	**Pavel Sergeyevich PUSHECHNIKOV** 1992	Karavayev Aleksandr Yevgenyevich Nizhniy Novgorod	Nizhniy Novgorod	Article 20.2 § 6.1 of CAO	detention for 13 days	Nizhniy Novgorod Regional Court 14/11/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
34.	28976/19 13/05/2019	**Roman Vladimirovich BOLSHAKOV** 1992	Karavayev Aleksandr Yevgenyevich Nizhniy Novgorod	Nizhniy Novgorod	Article 20.2 § 6.1 of CAO	detention for 12 days	Nizhniy Novgorod Regional Court 14/11/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
35.	29623/19 22/05/2019	**Irina Olegovna PRISEKINA** 1961	Bushmakov Aleksey Vladimirovich Yekaterinburg	Yekaterinburg	Article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 04/12/2018	Art. 5 (1) – unlawful deprivation of liberty - escorting to a police station for compiling an offence report and detention in excess of 3 hours (brought to the police station at 5.30 p.m. on 09/09/2018 and released at 1.53 a.m. on 10/09/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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36.	29876/19 08/05/2019	**Egor Igorevich YAROSHEVSKIY** 2000	Mikhaylova Varvara Dmitriyevna St Petersburg	St Petersburg	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 13/11/2018	Art. 5 (1) – unlawful deprivation of liberty – detention at the police station in excess of three hours after the offence report was compiled (arrested at 6 p.m. on 09/09/2018, brought to the police station at 1.40 a.m. on 10/09/2018, released in the morning on 11/09/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
37.	32221/19 29/05/2019	**Pavel Vitalyevich DAMOV** 1971	Balog Natalya Andreyevna Krasnoyarsk	Krasnoyarsk	Article 20.2 § 5 of CAO	30 hours of community work	Krasnoyarsk Regional Court 06/12/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
38.	32331/19 30/04/2019	**Tatyana Aleksandrovna GARAMOVA** 1987	Botukh Yuliya Igorevna Murino	St Petersburg	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	St Petersburg City Court 01/11/2018	Art. 5 (1) – unlawful deprivation of liberty – detention at the police station in excess of three hours after the offence report was compiled (arrested at 5.57 p.m. and brought to the police station at 8.05 p.m. on 09/09/2018, released at 8.15 a.m. on 10/09/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
39.	34115/19 17/06/2019	**Aleksey Viktorovich GONYAKOV** 1987	Chernyavskaya Andzhelika Viktorovna Oktyabrskiy	Novosibirsk	Article 20.2 § 5 of CAO	fine of RUB 12,000	Novosibirsk Regional Court 18/12/2018		3,500
40.	34307/19 18/06/2019	**Anton Vadimovich VISHNYAKOV** 1997	Chernyavskaya Andzhelika Viktorovna Oktyabrskiy	Novosibirsk	Article 20.2 § 5 of CAO	fine of RUB 5,000	Novosibirsk Regional Court 18/12/2018		3,500

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Location of the public event	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
41.	35126/19 17/06/2019	**Vitaliy Alekseyevich BREKALOV** 1993	Chernyavskaya Andzhelika Viktorovna Oktyabrskiy	Novosibirsk	Article 20.2 § 5 of CAO	fine of RUB 10,000	Novosibirsk Regional Court 18/12/2018		3,500
42.	36767/19 24/06/2019	**Vladimir Anatolyevich GORBUNOV** 1976	Chernyavskaya Andzhelika Viktorovna Oktyabrskiy	Novosibirsk	Article 20.2 § 5 of CAO	fine of RUB 5,000	Novosibirsk Regional Court 25/12/2018		3,500
43.	37102/19 28/06/2019	**Dmitriy Mikhaylovich MIRONOV** 1995	Bushmakov Aleksey Vladimirovich Yekaterinburg	Yekaterinburg	Article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 23/01/2019	Art. 5 (1) – unlawful deprivation of liberty - escorting to a police station for compiling an offence report (arrested at 4.30 p.m., brought to the police station at 6.20 p.m. and released later in the evening on 09/09/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
44.	42382/19 14/07/2019	**Svetlana Viktorovna KAVERZINA** 1995	Chernyavskaya Andzhelika Viktorovna Oktyabrskiy	Novosibirsk	Article 20.2 § 5 of CAO	fine of RUB 5,000	Novosibirsk Regional Court 15/01/2019		3,500
45.	58204/19 29/10/2019	**Andrey Sergeyevich VODOLAZSKIY** 1991	Peredruk Aleksandr Dmitriyevich St Petersburg	St Petersburg	Article 20.2 § 6.1 of CAO	60 hours of community work	St Petersburg City Court 11/06/2019	Art. 5 (1) – unlawful deprivation of liberty – detention at the police station in excess of three hours after the offence report was compiled (arrested at 4 p.m. and brought to the police station at 8.15 p.m. on 09/09/2018, released at 4.38 p.m. on 10/09/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Location of the public event	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
46.	5983/20 16/01/2020	**Dmitriy Sergeyevich TERESHCHENKO** 1993	Memorial Human Rights Centre Moscow	Krasnodar	Article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnodar Regional Court 16/07/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
47.	6271/20 16/01/2020	**Andrey Petrovich KULESHOV** 1998	Memorial Human Rights Centre Moscow	Krasnodar	Article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnodar Regional Court 16/07/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500

[1] Plus any tax that may be chargeable to the applicants.